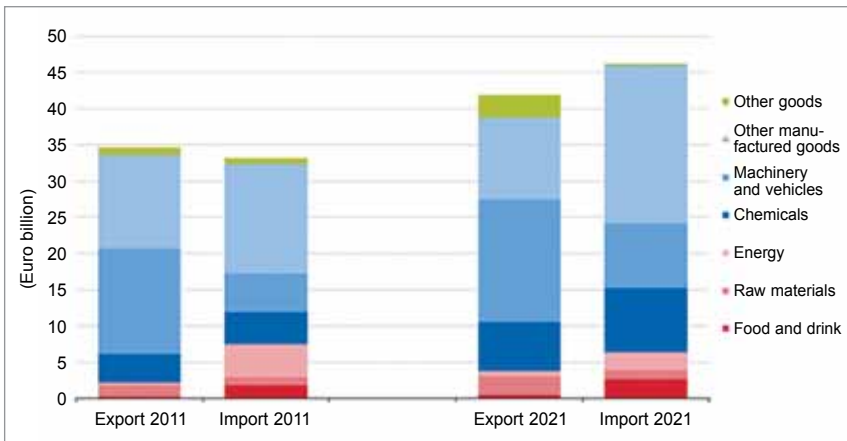




EU trade with India by product group, 2011 and 2021 (Source: Eurostat)

curity certification system for each Regulation (EU) 2019/881 may be extended to comply with the essential health and safety requirements in terms of the Mechanical Act.

Staff and co-bots: Safety and mental health

Finally, the Mechanical Act discusses the sensitive issue of workplace sharing between humans and equipment and, in particular, between humans and interactive robots or cobots, and the impact that technology can have on workers' psychological well-being and stress conditions.

Equipment that can learn and change behaviour should be adjusted to interact with people in a positive and understandable way (verbal, gestures, facial expressions, or body movements), telling employees what these plan to do and why. Instead of focusing only on the physical and visual damage that can be caused by AI based machines to humans, the proposal reaches out to control mental health and psychological conflicts that may arise when confronted with a potential and inexhaustible organisation.

Bond

The overall purpose of the security and credit structures is to ensure that all machines, including those incorporating emerging digital technologies, operate safely, reliably, consist-

ently, and with effective remedies in the event of damage. Confidence in these technologies is a business requirement and user acceptance and can encourage competition. There is legal obligation of supply-chain workers (manufacturer, authorised representative, importer, and distributor) in the event of damage caused by robots and equipment integrating AI systems.

The connection between the Mechanical Law and the applicable AI Law is important, with product liability (Directive 85/374/EEC and Consumer Code) and non-compliant national enforcement laws that apply equally. According to current European law on mechanical safety, the responsibility for product safety remains with the manufacturer who puts the product on the market (or the person who makes the major changes to it, according to the Machinery Act). The manufacturer is the one with the most detailed knowledge of the design and production process, therefore, it is placed in the best position to carry out the process of testing compliance.

Some EU safety laws already contain explicit provisions in cases where a few economic operators enter a product before it is put on the market. (The guidelines require equipment manufacturers to provide operator information on how to integrate a device into another machine.)

However, clear provisions require a certain level of cooperation among economic workers.

Impact of this regulation in India

The international trade in goods between India and the EU is quite interesting; a great incremental export of machinery from India to Europe is being noticed. Many multinational companies are also manufacturing their products in India for the global market. As an expert certifier of the machinery for CE marking, I came across several MNCs having their headquarters in the EU and other countries with their manufacturing plant located in India. This is because the cost-effective solution is related to the manpower, material, and prompt support.

Since India is one of the potential countries to export various types of machinery worldwide, including Europe, this new regulation is quite important for all the manufacturers who are exporting their machinery to the EU.

EU-India trade statistics

To understand the business potential between EU and India, see the figure on previous page, which has been sourced from Eurostat. Looking at the figures and graph of the manufactured goods, in which machinery is also included as a major product, the trend of export can be seen increasing from the year 2011 to 2021. EU imports of manufactured goods (86%) had a much higher share than primary goods (14%).

According to the statistical analysis, India is the tenth-largest export partner of the EU.

Since India is emerging with the adoption of new technologies, the 'Make in India' campaign, and encouragement from the government for drones and robotics machinery, this new regulation is very much essential to understand and align with the necessary compliance requirements. **EFY**